IN THE COURT OF APPEALS OF THE STATE OF NEW MEXICO

IN THE MATTER OF THE PETITION
TO AMEND TITLE 20, CHAPTER 11 OF THE
NEW MEXICO ADMINISTRATIVE CODE
TO REQUIRE REVIEW AND CONSIDERATION
OF HEALTH, ENVIRONMENT AND EQUITY
IMPACTS, 2022-03,

NATIONAL TECHNOLOGY AND
ENGINEERING SOLUTIONS OF SANDIA, LLC;
ALBUQUERQUE ASPHALT, INC.; BLACK
ROCK SERVICES, LLC; VITAL CONSULTING
GROUP, LLC; MOUNTAIN STATES
CONSTRUCTORS, INC.; CURIA NEW MEXICO;
and NEW MEXICO CHAMBER OF COMMERCE,

Appellants,

v. No. A-1-CA-41666

ALBUQUERQUE-BERNALILLO COUNTY
AIR QUALITY CONTROL BOARD,

Appellee,

and

MOUNTAIN VIEW COMMUNITY ACTION,
MOUNTAIN VIEW NEIGHBORHOOD
ASSOCIATION, and FRIENDS OF VALLE DE ORO,

Intervenors-Appellees.

Albuquerque-Bernalillo County
Air Quality Control Board No. 2022-03
Hearing Officer Retired Judge William Sanchez

MOUNTAIN VIEW COMMUNITY ACTION, MOUNTAIN VIEW NEIGHBORHOOD ASSOCIATION, and FRIENDS OF VALLE DE ORO'S ANSWER BRIEF to ALBUQUERQUE ASPHALT, *et al.*'s BRIEF-IN-CHIEF

New Mexico Environmental Law Center
Eric D. Jantz
Maslyn K. Locke
P.O. Box 12931
Albuquerque, NM 87195
(505) 989-9022

Attorneys for Intervenors-Appellees

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STATEMENT OF COMPLIANCE

Consistent with Rule 12-318(A)(1)(c) and (G) NMRA, Intervenors-Appellees certify that this Answer Brief complies with the 11,000 word limit of Rule 12-318(F) NMRA. According to Microsoft Word 2016, the body of this brief contains 10,711 words.

I. INTRODUCTION

Appellants Albuquerque Asphalt, Inc.; Black Rock Services, LLC; Vital Consulting Group, LLC; Mountain States Constructors, Inc.; Curia New Mexico; and New Mexico Chamber of Commerce (collectively "Appellants" or "Industry Appellants"), offer a tranche of arguments about why the Albuquerque-Bernalillo County Air Quality Control Board's ("Board") final Health, Environment and Equity Impact Rule ("Final Rule" or "HEEI") is contrary to law. However, Appellants' arguments lack both legal substance and factual support in the Record Proper ("RP" or "Record") and therefore fail.

"Regret for the things we did can be tempered by time; it is regret for the things we did not do that is inconsolable."[1] Industry Appellants' Brief-in-Chief ("BIC") reads less like a legal brief than a litany of regrets about how they should have, but did not, present their case to the Board. Perhaps they should have cross-examined Petitioners' witnesses more thoroughly. Perhaps their witnesses should not have suggested solutions that the Board would incorporate into the Final Rule. Whatever regrets Appellants may have about their advocacy before the Board, those regrets do not translate into cognizable legal issues this Court should entertain.

[1] Harris, Sydney J., *Syd Cannot Stand Christmas Neckties* at 6, Column 5, Akron Beacon Journal (Jan. 5, 1951).

Industry Appellants' arguments against the Final Rule fall into three main categories. The first category involves the general allegation that the Final Rule has no basis in the Record for particular provisions Appellants apparently dislike, when the Record actually contains ample evidence supporting the complained of provisions. The Board acted properly in sifting through that evidence and making the technical, scientific, economic and policy choices that best advance the New Mexico Air Quality Control Act's, NMSA 1978, § 74-2-1 *et seq.* ("Air Act"), purpose of protecting public health and welfare. This Court should not second-guess those choices.

The second category involves alleged procedural deficiencies that Appellants assert require this Court to set aside the Final Order in its entirety. Appellants argue because the proposed rule the Board publicly noticed is not identical to the Final Rule, notice was deficient. Appellants also argue that procedural deficiencies caused the Board to run afoul of the New Mexico Open Meetings Act. None of the alleged procedural defects Appellants raise, however, have any factual basis in the Record or any legal support and should therefore be rejected.

The third category involves allegations that the Board acted beyond its authority in adopting the Final Rule. Yet the Record shows the Board promulgated

the Final Rule in accordance with all statutory and regulatory requirements, consistent with its mandate to protect public health and welfare from air emissions.

Interestingly, despite their complaints about substantive and procedural defects in the Board's rulemaking proceeding and Final Rule, Appellants do not assert any specific (or even general) harm they suffered from these alleged defects. Perhaps Appellants' inability to identify any harm is because the Board conducted its rulemaking proceeding as the Air Act and Board regulations intended and the Final Rule is a logical and reasonable outcome of that process. Indeed, the most striking thing about the Board's rulemaking is how ordinary it was – all stakeholders presented their views and data, the Board sifted through the evidence and applied its expertise to arrive at a rule that balanced the competing interests. Appellants' dissatisfaction with the outcome and regrets about the case they put on before the Board is no reason for this Court to set aside a regulation that complies with statutory and regulatory requirements. Because Appellants have failed to carry their burden of proof in showing the Board's process or Final Rule are improper and have not established any other basis on which the Board's Final Rule is in error, this Court should deny their claims for relief in their entirety.

II. STANDARD OF REVIEW

The Air Act provides that a court will set aside an administrative agency action only if it is: 1) arbitrary, capricious or an abuse of discretion; 2) not

supported by substantial evidence in the record; or 3) otherwise not in accordance with law. NMSA 1978, § 74-2-9(C). The party challenging an administrative agency's actions bears the burden of establishing that the Board's promulgation of the Final Rule is unreasonable or unlawful. *Pub. Serv. Co. v. N.M. Pub. Regul. Comm'n,* 2024-NMSC-012, ¶ 8, 548 P.3d 97.

III. ARGUMENT

A. The Board Gave Adequate Notice of the HEEI Rulemaking.

Appellants' argument that the Board failed to provide adequate notice of its rulemaking is striking for two reasons. First, Appellants conflate notice requirements for rulemakings and notice requirements for administrative adjudications. Second, most of the legal authority Appellants cite as support for their arguments is inapplicable to the Board. When the correct legal standard is applied, it is clear that the Board complied with all statutory and regulatory notice requirements during the HEEI rulemaking hearing. Furthermore, Appellants' argument that the Board denied them notice of provisions of the Final Rule, such that they had no opportunity to address changes to the proposed rule fails, as evidence in the Record shows that Appellants both anticipated the provisions of the Final Rule they now take issue with and presented evidence on such provisions.[2]

[2] Appellants' due process arguments are limited to alleged procedural due process violations. Appellants make no argument that the HEEI violates substantive due

1. Legal Standard for Rulemaking Notice.

Contrary to Appellants' repeated assertions, (*see, e.g.*, **[BIC 19, 20]**) there is no constitutional right to notice for a rulemaking; that right is conferred solely by statute. *Livingston v. Ewing*, 1982-NMSC-110, ¶ 14, 98 N.M. 685, 652 P.2d 235 ("[t]there is no fundamental right to notice and hearing before the adoption of a rule; such a right is statutory only"). This Court should disregard any express or implied arguments to the contrary. In this matter, the only requirements applicable to the HEEI rulemaking are those enumerated in the Air Act and the Board's rulemaking regulations – regulations the Board followed. Moreover, the Board's rulemaking hearing must be understood within the context of its purpose: Board rulemaking hearings are intended to allow the Board to hear the views of interested parties, receive pertinent data, hear arguments and testimony in order to intelligently fashion a rule that prevents and abates air pollution. *Wylie Bros. Contracting Co. v. Albuquerque-Bernalillo Cnty. Air Quality Control Bd.*, 1969-NMCA-089, ¶ 33, 80 N.M. 633.[3]

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process and the Court should not entertain such an argument. *Elane Photography, LLC v. Willock*, 2013-NMSC-040, ¶ 70, 309 P.3d 53.

[3] Industry Appellants misstate the holding of this case. **[BIC 21]**. Appellants erroneously assert that this Court in *Wylie Bros*. held a regulation would not be fatal only if the major portion of the proposed regulation remains unchanged in its final form. *Id*. However, in the paragraph Appellants cite, the court was merely noting the facts of the case before it, explaining that the major portion of the proposed regulation was unchanged in the final regulation. *Wylie Bros.*, 1969-

a. Statutory notice requirements for Board rulemakings.

The Air Act provides that rulemaking notice shall: 1) provide at least 30 days notice of the rulemaking hearing; 2) provide the subject, time and place of the hearing; 3) contain the manner in which interested parties can present their views; 4) state where interested persons may get copies of the proposed regulation or standard; 5) provide that notice be published in a newspaper of general circulation in the area affected; and 6) reasonable effort shall be made to notify interested persons who have requested notification. NMSA 1978, § 74-2-6 (C).[4] The Air Act does not require that the Board publish the full text of the regulation or standard, only that the notice must state where interested persons may get copies of the proposed regulation or standard. *Id*.

NMCA-089 at ¶ 32. This Court actually held the Air Act does not contemplate that every change to a proposed rule, whether inconsequential or substantial, requires an additional hearing. *Id*. at ¶ 39.

[4] Appellants cite the New Mexico Administrative Procedures Act, NMSA 1978, § 12-8-4(A)(2)(b) ("NMAPA") as authority for its assertion that the Board's notice was defective. **[BIC 19]**. However, the NMAPA only applies to agencies, placed, by rule or law, under the NMAPA. *Earthworks Oil & Gas Accountability Project v. New Mexico Oil Consv. Comm'n*, 2016-NMCA-055, ¶ 38, (citation omitted). Appellants cite no statute or regulation that indicates the Board is subject to the NMAPA, so the Court should reject Appellants' argument. *Id*.

b. Regulatory notice requirements for Board rulemakings.

The Board's rulemaking regulations are at 20.11.82.1 *et seq*. NMAC.[5] Section 20.11.82.19.A NMAC provides that the Board must give at least 30 days' notice of a rulemaking by: 1) single publication in the newspaper with the largest circulation in Bernalillo County, *id*. at 20.11.82.19.A.1; 2) publication in the New Mexico Register, *id*. at 20.11.82.19.A.2; 3) if technically feasible, publication by electronic media, *id*. at 20.11.82.19.A.3; and 4) by other means as the Board directs or is required by law, *id*. at 20.11.82.19.A.4. The Board must also make reasonable efforts to provide notice to those who have requested advanced notice. 20.11.82.19.B NMAC.

Section 20.11.82.19.C *et seq.* NMAC provides that notice of rulemaking hearing shall contain: 1) the subject of the proposed rule, a description of the rule, and the date, time and place of hearing, 20.11.82.19.C.1 NMAC; 2) the statutes, regulations and procedural rules governing the hearing, *id*. at 20.11.82.19.C.2; 3) the manner in which interested persons can present their views and evidence to the

[5] Appellants cite regulations applicable to the state Environmental Improvement Board as support for their assertion the Board's notice was inadequate. **[BIC 19-20]**, *citing* 20.1.1.301 and 407 NMAC. These regulations are not applicable to the Board and this Court should therefore disregard Appellants' arguments. *Earthworks Oil & Gas Accountability Project*, 2016-NMCA-055, ¶ 38 (citation omitted).

Board, *id*. at 20.11.82.19.C.3; 4) the location where persons can obtain copies of proposed rule, *id*. at 20.11.82.19.C.4; and 5) if applicable, that the board may make a decision on the proposed regulatory change at the conclusion of the hearing or at a separate board meeting, *id.* at 20.11.82.19.C.5.

Additionally, Air Board rules allow parties, including the petitioner, to propose rule changes fifteen days before the hearing. 20.11.82.20.A.4 NMAC. That provision puts no restrictions or limitations on the scope of the proposed rule changes. *Id*. Thus, the Board's rules clearly indicate that the Board can consider such proposed changes during a rulemaking hearing.

2. The Board's Notice Satisfied all Statutory and Regulatory Requirements.

In this case, the Board published notice in the Albuquerque Journal on October 22, 2023, more than thirty days before the rulemaking hearing began on December 4, 2023. **[RP 1090 – 1093]**. The Board published notice in the New Mexico Register on October 25, 2023. **[RP 1094 – 1098]**. The Board distributed the rulemaking notice to its email listserv on October 22, 2023. **[RP 1099 – 1106]**. The Board's notice was therefore timely. NMSA 1978, § 74-2-6 (C); 20.11.82.19.A NMAC.

The Board's notice contained the subject of the proposed rule, a description of the rule, and the date, time and place of hearing, satisfying 20.11.82.19.C.1 NMAC. **[RP 1099 – 1100]**. The notice also contained the statutes, regulations and

procedural rules governing the hearing, satisfying the requirements in 20.11.82.19.C.2 NMAC. **[RP 1100]**. The Board specified the manner in which interested persons could present their views and evidence to the Board, satisfying the requirements of 20.11.82.19.C.3 NMAC. **[RP 1100 – 1102]**. Finally the notice specified the location where persons could obtain copies of the proposed rule, satisfying the requirements of 20.11.82.19.C.4 NMAC. **[RP 1100]**. The Board's notice therefore complied with all statutory and regulatory requirements and was adequate under New Mexico law. *Livingston*, 1982-NMSC-110 at ¶ 14.

3. Appellants' Notice Arguments are Based on Standards that Do Not Exist for Board Rulemakings.

Appellants base their arguments that the Board provided inadequate notice on standards and facts that they wish existed, but do not. Appellants further argue that the Final Rule is "significantly different" than the draft rule noticed by the Board and drafts offered by the parties to the rulemaking, without pointing to any requirement that the Final Rule be identical to the proposed rule.

a. New Mexico law does not require that an agency's final rule be identical to a draft rule.

Appellants cite two provisions in the Final Rule, which they argue violated their right to due process because those provisions did not hew closely enough to the proposed draft rule. Appellants argue that there was no requirement in the noticed draft rule that sources emitting Hazardous Air Pollutants ("HAPs") use

Best Available Control Technology ("BACT"), but the Final Rule contains such a provision. **[BIC 20]**. [6] Appellants also argue that the noticed draft rule contained no requirement that a pollution source in or within a one-mile radius of an overburdened community use BACT, but the Final Rule did. *Id.*

However, New Mexico law does not require a final rule to be identical, or even significantly similar, to a proposed rule. There is no provision in the Air Act or the Board's rulemaking regulations positing such a requirement and Appellants cite none. Additionally, New Mexico case law is clear that in rulemakings, even substantial deviations from a proposed rule do not require new notice and hearing. *Wylie Bros.,* 1969-NMCA-089 at ¶ 39. General notice of the <u>issues</u> an agency intends to consider at hearing is sufficient to satisfy due process. *Rayellen Res., Inc. v. New Mexico Cultural Properties Comm'n*, 2014-NMSC-006, ¶ 52, 319 P.3d 639 (emphasis added) (citation omitted); *see also, So. Terminal Corp. v. EPA*, 504 F.2d 646, 656 - 658 (1st Cir. 1974) (even significant departures from proposed rule are within zone of notice if parties could have reasonably anticipated the scope).

[6] Because there is no constitutional right to due process in rulemakings, this Court should disregard all Appellants' citations to administrative adjudications, which carry certain minimal constitutional protections. *See, e.g.*, **[BIC 19]**, *citing Rivas v. Bd. of Cosmetologists*, 1984-NMSC-076 and *Groendyke Transp., Inc. v. State Corp. Comm'n*, 1969-NMSC-042. Moreover, Appellants allege no liberty or property interest of which the HEEI would deprive them, which is an indispensable element of a due process claim. *Titus v. City of Albuquerque*, 2011-NMCA-038, ¶ 40, 149 N.M. 556, 252 P.3d 780.

As long as a party is able to provide all relevant input, due process is satisfied. *Rayellen Res., Inc.*, 2014-NMSC-006 at ¶ 54.

In this case, the fact that the draft rule the Board noticed and to which Appellants cite refers to the possibility of using BACT for both criteria air pollutants and HAPs in and within one mile of an overburdened community sufficiently notified Appellants of the issues the Board would consider at the hearing. **[RP 1018:30 – 1020:25]**. Moreover, other parties to the proceeding, who received the same notice as Appellants of the complained of provisions, were able to address them in written testimony submitted prior to the hearing. *See, e.g.*, **Written Testimony of Steven Branhoff at 20-21, attached as Exhibit 12 to University of New Mexico's Notice of Intent to Present Technical Testimony (Nov. 17, 2023)**[7]; ***Technical Report: Comments on the AQCB Rule 20.11.72 NMAC,*** **prepared by Michael Celente and Scott Cohen, at 00054, 00058-00059, 00060 (Nov. 17, 2023), attached as Exhibit 5 to GCC Rio Grande, Inc., Western Refining Terminals, LLC, HF Sinclair Asphalt Company, LLC, Musket Corporation and ABQ Terminals, LLC's Joint Notice of Intent to**

[7] All party Notices of Intent to Present Technical Testimony ("NOI") and exhibits lack a record proper number, despite being part of the Record. These documents were provided to the Court via flash drive entitled "USB2 NOI's and Exhibits," filed with "USB1 RP and Transcripts" on May 21, 2024.

Present Technical Testimony. Industry Appellants' argument that the Board's notice was insufficient is without merit.

b. New Mexico has not adopted the "logical outgrowth" doctrine, but even if it had, the Final Rule is a logical outgrowth of the various proposed rules.

Appellants next claim that, because there is no evidence in the record to support the difference between noticed rule and the Board's Final Rule, the Final rule cannot be considered a "logical outgrowth" of proposed rule version 4. This argument fails for three reasons.

First, Industry Appellants cite no legal authority to support their argument that the Board's Final Rule is not a logical outgrowth of the noticed rule. **[BIC 21-22]**. Appellants' failure to support its argument with citations to legal authority violates this Court's rules of procedure. Rule 12-318(A)(4) NMRA (brief in chief shall contain an argument which, with respect to each issue presented, shall contain … the contentions of the appellant … with citations to authorities … relied on) (emphasis added); *In re: Adoption of Doe*, 1984-NMSC-024, ¶ 2, 100 N.M. 764, 676 P.2d 1329 (issues raised in appellate briefs unsupported by cited authority will not be reviewed on appeal. Because Appellants cite no authority for their arguments, those arguments should not be considered.

Second, New Mexico has not adopted the "logical outgrowth" doctrine.[8] *Independent Petroleum Ass'n of New Mexico v. Envt'l Improvement Bd*, No. A-1-CA-40546, dec. at 6, n. 1 (N.M. Ct. App. Nov. 27, 2024) (non-precedential). The question before this Court, then, is whether Appellants had a fair opportunity to present their views on the final rule. As demonstrated in Section III.A.4, below, Appellants had, and took, the opportunity to provide their views and data on the issues of which they complain they had inadequate notice and in fact presented their views and data on those issues. The Board's proceedings fulfilled New Mexico's due process requirements for administrative rulemakings. The assertion that Appellants had inadequate notice of provisions in the Final Rule of which Appellants complain is simply false.

Third, even if this Court entertains Appellants' "logical outgrowth" argument, the Board's Final Rule in this case is a logical outgrowth of the noticed rule and the rulemaking parties' amendments thereto. In *So. Terminal Corp. v. EPA*, the court upheld a final agency rule and determined that rulemaking hearing

[8] Even federal courts, which have embraced the "logical outgrowth" doctrine, suggest that the doctrine is limited to the "strictures" of notice and comment rulemaking because commentators do not have the procedural protections available in formal rulemakings, such as the Board's, including the ability to challenge opposing evidence and cross-examination. *Environmental Integrity Project v. EPA*, 425 F.3d 992, 996 (D.C. Cir. 2005).

is intended to educate the agency about approaches different from its own. *Id*., 504 F.2d 646, 659 (1st Cir., 1974). In shaping the rule, the Court stated that the agency can and should draw on the data and views tendered. *Id*. The parties do not have the right to insist the rule remain frozen in its vestigial form. *Id*. As long as the notice gives parties sufficient warning of alternatives to know what issues are at stake, and the final rule is in "character" with the original scheme and were additionally foreshadowed by proposals and comments during the hearing, the final rule is a logical outgrowth of the proposed rule. *Id*. at 658.

In this case, the Board's notice, the evidence, testimony and amendments to the proposed rule presented in the parties' Notices of Intent to Present Technical Testimony, the various rule drafts available to all parties during the Board's prehearing and hearing process, and the evidence and testimony presented at hearing, clearly gave Appellants notice of the issues at stake in the proceeding and foreshadowed the Final Rule. Furthermore, evidence in the Record[9] and in the filed Notices of Intent plainly contradict Appellants' complaint that the Final Rule's BACT requirement for emission sources within a one-mile radius of an overburdened community was a complete surprise. Testimony of Dr. Tami McMullin, **[Tr. at 1551:15 – 1552:9]** (indicating that regulating toxic air

[9] *See*, Section III.A.4, below, for additional Record citations relevant to this argument.

pollutants in and within a mile of overburdened communities would be a good place to start). Likewise, the Record belies Appellants' complaint that the Final Rule's requirement that sources emitting certain HAPs be subject to BACT is not a logical outgrowth of the noticed proposed rule and Record evidence. **Direct Written Testimony of Paul Wade at Sec. 1** (advocating that regulations under existing Part 41 of the New Mexico Administrative Code could be a basis for additional HAPs regulation, indicating understanding of proposed BACT implications); **Sec. 3** (proposing to eliminate all reference to BACT and other control technologies in the noticed rule), **attached as Exhibit 1 to Appellants' Notice of Intent to Present Technical Testimony (Nov. 17, 2023) ("Appellants' NOI"); *Id*. at Ex. 2, Written Testimony of Karl Lany, Sec. 1 at 3** (testifying that BACT and other control technologies be eliminated from the noticed rule and suggesting that if technology or process standards are to be incorporated into the final rule, they should focus on HAPs). The notice and Record support the conclusion that the Final Rule is a logical outgrowth of the noticed proposed rule.

4. Appellants had Ample Opportunity, Which They Took, to Present Relevant Views and Data on all the Issues before the Board.

Finally, Appellants fail to allege how they were harmed by the complained of notice defects. This omission could be because Appellants not only had adequate notice of the HEEI rule, but also had ample opportunity to present

relevant input on the issues of which they complain, which they took. For example, Industry Appellants' expert witness, Dr. Tami McMullin testified that regulating toxic air pollutants in and within a one-mile radius of overburdened communities, identified using EJScreen, the U.S. Environmental Protection Agency's overburdened areas mapping tool which considers indicators similar to those in the Final Rule, would be appropriate. **[Tr. at 1551:15 – 1552:9]**. Thus, Industry Appellants' own witness testified approvingly of regulating toxic, i.e., hazardous, air pollutants in overburdened communities and within one mile of those communities. *Id*. Additionally, various other parties presented witnesses in favor of and against using BACT to control emissions, who Appellants cross-examined. Testimony of Dr. Nicky Sheats **[Tr. at 416:7 – 417:2]**; Testimony of Dr. James Clark **[Tr. at 617:1 – 618:23]**; Testimony of Mr. Michael Celente **[Tr. at 1075:8 – 1076:23; 1089:16 – 1090:20; 1095:16 – 1096:7; 1535:5 – 1537:1]**; Testimony of Mr. Steven Branhoff **[Tr. at 1658:15 – 1660:1]**. Because Appellants and other parties to the rulemaking hearing actually presented evidence on the provisions Appellants complain of, the Board's notice was clearly sufficient.

B. The Board's Decision is Supported by Substantial Evidence.

1. Appellants' Substantial Evidence Argument does not Comply with the New Mexico Rules of Appellate Procedure.

In asserting there is not substantial evidence in the Record to support the Board's decision, except for a single factual representation, Appellants make no citation to the Record Proper. **[BIC 22-26]**. Appellants' failure to cite to the Record for its factual assertions violates Rule 12-318(A)(4) NMRA, which requires that an appellant support each issue it argues with proper citations to law and, for factual representations, the record. *Id*.; *Santa Fe Exploration Co. v. Oil Conservation Com'n of State of N.M.*, 1992-NMSC-044, ¶ 11, 114 N.M. 103, 108, 835 P.2d 819; *State v. Hosteen*, 1996-NMCA-084, ¶ 20, 122 N.M. 228, 923 P.2d 595 (arguments not supported by authority will be deemed abandoned). Intervenors-Appellees urge this Court to disregard Appellants' substantial evidence arguments in their entirety for their failure to comply with the Court's rules. *Santa Fe Exploration Co.*at ¶ 11 (appellate courts under no obligation to consider unsupported arguments); *Hosteen* at ¶ 20.

2. Substantial Evidence Standard

Even if this Court entertains Appellants' argument, that argument is without merit. An agency action is not supported by substantial evidence in the record if, looking at both the favorable and unfavorable evidence in the record, there is

insufficient evidence that a reasonable mind would regard as adequate to support the agency's conclusion. *Fitzhugh v. New Mexico Dep't of Lab., Emp. Sec. Div.*, 1996-NMSC-044, ¶¶ 23-24, 122 N.M. 173, 922 P.2d 555. Importantly, substantial evidence can support an agency decision even when conflicting testimony exists in the record. *N.M. Indus. Energy Consumers v. N.M. Pub. Regulation Comm'n*, 2019-NMSC-015, ¶ 13, 450 P.3d 393. Furthermore, "[t]he reviewing court starts out with the perception that all evidence, favorable and unfavorable, will be viewed in the light most favorable to the agency's decision." *Tallman v. ABF (Arkansas Best Freight)*, 1988-NMCA-091, ¶ 18, 108 N.M. 124, 767 P.2d 363; s*ee also, Begay v. Consumer Direct Pers. Care*, 2015-NMCA-025, ¶ 6, 344 P.3d 1083 (alteration, internal quotation marks, and citation omitted).

3. Substantial Evidence in the Record Supports the HEEI.

Appellants' disregard of the Rules of Appellate Procedure notwithstanding, the Record evidence supports the Board's decision and the Final Rule.

a. Substantial evidence supports applying BACT to hazardous air pollutants countywide.

Appellants assert that the Board failed to consider the factors enumerated in § 74-2-5(F) of the Air Act in concluding that BACT should be applied to hazardous air pollutants countywide. **[BIC 24]**. Further, Appellants incredibly assert there is no evidence in the Record to support the Board's decision to apply

BACT countywide to sources emitting HAPs. *Id*. However, substantial evidence in the Record supports the Board's decision.

For example, an expert witness for the Board of Regents of the University of New Mexico ("UNM"), Mr. Michael Celente, testified that regulatory agencies in other jurisdictions across the Country regularly impose BACT on HAP sources throughout their jurisdictions. Testimony of Michael Celente **[Tr. at 1085:9-12; 1089:16 – 1090:7]**. Dr. Sofia Martinez testified that clean air is something that everyone in Albuquerque and Bernalillo County should demand. **Direct Testimony of Dr. Sofia Martinez at 5:5-6**, **Community Intervenors' Exhibit 1**, **attached to *Notice of Intent of Sofia Martinez and Manuel Criollo to Present Direct Technical Testimony* (Nov. 16, 2023) ("Community Intervenors' NOI")**. Dr. Martinez additionally testified that regulations ensuring clean air for environmental justice communities would mean clean air for <u>all</u> communities in Bernalillo County. ***Id*. at 6:1-5** (emphasis added). This evidence, combined with the evidence cited in Section III.B.3.b, below, supporting the use of BACT generally, represents substantial evidence in the Record demonstrating the Board satisfied the requirements of § 74-2-5(F) of the Air Act.

Perhaps the most convincing evidence in favor of applying BACT countywide to sources emitting HAPs comes from Industry Appellants themselves. Appellants' expert witness, Dr. Tami McMullin, specifically noted that, in many

states, air toxics regulation is not dependent on a particular community's characteristics, because everyone deserves clean air. Testimony of Dr. McMullin **[Tr. at 1701:10-12]**. Thus, Dr. McMullin suggested that any regulation the Board might enact should decouple environmental justice considerations from air toxics regulation. *Id*. **[Tr. at 1701:12-13]**. Appellants cannot now complain that the Board took Dr. McMullin up on her suggestion.

b. Appellants' assertion that the Board's BACT mandate is unsupported by substantial evidence is without merit.

Appellants assert there is no evidence whatsoever in the record to support the Board's BACT mandate. **[BIC 24 -25]**. In reality, there is ample evidence to support the BACT mandate and, in particular, the public health benefits of such a mandate. Moreover, there is substantial evidence in the Record to support each of the factors the Board was required to consider pursuant to the Air Act. *See*, NMSA 1978, § 74-2-5(F). Appellants' unilateral desire that the evidence be different than it is, is not a basis to set aside the Board's decision.

As demonstrated throughout the Record, low-income communities and communities of color bear disproportionate impacts of air pollution and the concomitant health effects. Testimony of Dr. Rachel Morello-Frosch **[Tr. at 263:20 – 266:10; 267:14 – 268:9; 378:6 - 379:15; 350:5 – 23]**; Testimony of Dr. Jill Johnston **[Tr. at 915:16-23; 918:5-15; 918: 24 – 919:10]**; Testimony of

Michael Celente **[Tr. at 1071:20 – 1072:6]** (testifying that fine particulate matter (PM2.5) concentrations in Albuquerque's South Valley are almost twice as high as those in the Foothills); **Direct Testimony of Dr. Nicky Sheats at 8:19 – 9:2; 9:17- 10:4; 12:18 – 13:16; 14:4-6, Community Intervenors' Exhibit 5**, **attached to Community Intervenors' NOI**; **Direct Testimony of Dr. Sofia Martinez at 4:4-13; 5:1-6; 5:19 – 6:5; 5 n.2; 6:12-23, Community Intervenors' Exhibit 1**, **attached to Community Intervenors' NOI**. However, using control technologies such as BACT inarguably reduces emissions. *See, e.g.,* Testimony of Paul Wade **[Tr. at 1755:17-24]**; Testimony of Dr. James Clark **[Tr. at 550:15 – 551:8; 617:1 – 618:23; 623:9-22; 814:8 – 815:5]**; Testimony of Dr. Monica Unseld **[Tr. at 943:1 – 944:9]**; Testimony of Michael Celente **[Tr. at 1076:11-12]**; Testimony of Dr. Nicky Sheats **[Tr. at 416:7 – 417:2]**. This evidence satisfies the factors in § 74-2-5(F)(1) and (2) of the Air Act.

Reduced emissions, in turn, lead to improved health outcomes. Testimony of Dr. Rachel Morello-Frosch **[Tr. at 262:1-6; 275:21 – 278:2; 278:12 – 279:16; 282:21 – 284:3]** (explaining the ways that regulatory interventions such as pollution control improve public health). Indeed, Dr. Jill Johnston testified that anytime an agency reduces or removes harmful air emissions from an already overburdened community, such as with the HEEI rule, it will improve the public health and welfare of that community. **Direct Testimony of Jill E. Johnston,**

P.hD at 28:11-15, Community Intervenors' Ex. 9, attached to Community Intervenors' NOI. This evidence also satisfies the factors in § 74-2-5(F)(1) and (2) of the Air Act.

Further, the Record shows that Appellants' claim that the compliance costs of the noticed rule are overblown. **Petitioners' Rebuttal Exhibit 1, Written Rebuttal Testimony of Dr. James Clark at 31-32, attached to Petitioners' Notice of Intent to Present Rebuttal Testimony (Dec. 1, 2023)**. Significantly, the Final Rule's requirements are much less stringent than the noticed rule, and therefore compliance costs will be even less. The Record contains evidence that, ultimately, the economic benefits reduced emissions provide the entire county offsets any cost to individual source operators. Testimony of Dr. Kelly O'Donnell **[Tr. at 982:10-18; 992:8-17; 1013:1-7]**; **Written Testimony of Dr. Kelly O'Donnell, Ph.D, Petitioners' Exhibit 4 at 16-20, attached to Petitioners' Notice of Intent to Present Technical Testimony (Nov. 11, 2023).** Further, the Record contains substantial evidence that other state regulatory agencies routinely and economically implement similar BACT requirements. Testimony of Michael Celente **[Tr. at 1085:9-12; 1089:16 – 1090:7]**; Testimony of Steven Branhoff **[Tr. 1658:15 – 1660:1]**. Finally, Appellants' own expert, Karl Lany, suggested that focusing on a particular control technology, e.g. BACT, to address air toxics rather than requiring a risk assessment for each permit application might be more cost

effective for industry. Testimony of Karl Lany **[Tr. at 1721:18-23]**. Given the Final Rule contains that very provision, Appellants do not now have room to complain. *See*, 20.11.72.8.C and D NMAC (requiring BACT technology rather than requiring a risk assessment). This evidence satisfies the factors in § 74-2-5(F)(2) and (3) of the Air Act. Substantial evidence in the Record supports the Board's Final Rule and satisfies each of the factors in Section 74-2-5(F) of the Air Act.

C. The Board's Final Decision is Reasonable and Rationally Based on the Record.

1. Legal Standard.

An agency decision is arbitrary, capricious, or an abuse of the agency's discretion only if it is unreasonable or without rational basis when viewed in light of the whole record. *WildEarth Guardians v. New Mexico Env't Improvement Bd*., 2024-NMCA-021, ¶ 11, 542 P.3d 820. Moreover, "[n]ormally, an agency rule would be arbitrary or capricious if the agency failed to consider an important aspect of the problem, offered an explanation for its decision that runs counter to the evidence before the agency, or is so implausible that it could not be ascribed to a difference in view or the product of agency expertise." *Rio Grande Chapter of Sierra Club v. New Mexico Mining Comm'n*, 2003-NMSC-005, ¶ 12, 133 N.M. 97. The party challenging a rule adopted by an

administrative agency carries the burden of showing that the rule is arbitrary and capricious by demonstrating that "the rule's requirements are not reasonably related to a legislative purpose." *Earthworks Oil & Gas Accountability Project v. N.M. Oil Conservation Comm'n*, 2016-NMCA-055, ¶ 11, 374 P.3d 710.

2. The Final Rule is Reasonable, Rational and Related to the Air Act's Legislative Purpose of Protecting Public Health and Welfare.

First, as with Appellants' substantial evidence argument, Appellants waive their argument the Board's decision is arbitrary and capricious because they fail to make any citations to the Record for their factual assertions. Rule 12-318(A)(4) NMRA; *Santa Fe Exploration Co.*, 1992-NMSC-044 at ¶ 11; *Hosteen*, 1996-NMCA-084 at ¶ 20. Furthermore, even if this Court considers Appellants' argument that the Board's decision is arbitrary and capricious, Appellants fail to meet their burden of proof.

Appellants' argument the Final Rule is arbitrary and capricious is a rehash of their earlier arguments that the Board failed to provide adequate notice and the Final Rule is not supported by substantial evidence in the Record. Thus, Appellants' assertion the Final Rule is arbitrary and capricious because certain provisions have no support in the Record **[BIC 26]** is debunked by Intervenors-Appellees' arguments in Section III.B.3.a and b, above, which Intervenors-Appellees incorporate by reference herein.

Appellants add that evidence at the hearing (while providing no citation to that evidence) undermines the BACT mandate because of the logistical and financial burdens BACT would create. **[BIC 26]**. However, as demonstrated in Section III.B.3.a and b above, there is substantial evidence in the Record to support the Board's conclusion that BACT is both feasible and economical. **Petitioners' Rebuttal Exhibit 1, Written Rebuttal Testimony of Dr. James Clark at 31-32;** Testimony of Dr. Kelly O'Donnell **[Tr. at 982:10-18; 992:8-17; 1013:1-7]**; **Written Testimony of Dr. Kelly O'Donnell, Ph.D, Petitioners' Exhibit 4 at 16-20;** Testimony of Michael Celente **[Tr. at 1085:9-12; 1089:16 – 1090:7]**; Testimony of Steven Branhoff **[Tr. 1658:15 – 1660:1]**; Testimony of Karl Lany **[Tr. at 1721:18-23]**. The Board weighed the competing evidence, applied their expertise and reached a reasonable conclusion based on that evidence.

Similarly, Appellants' assertion (made without citation to the Record) that the Final Rule is outside the scope of the notice given for the rulemaking hearing fails. **[BIC 26-27]**. Changes to a draft rule are not arbitrary or capricious if they are consistent with the data, views, arguments and testimony presented at the hearing. *Wylie Bros.,* 1969-NMCA-089 at ¶ 32. Conversely, a <u>total</u> disregard for the information and views received at hearing would be arbitrary and capricious because it would defeat the purposes of holding a hearing completely. *Id*. at ¶ 35 (emphasis in original).

Here, as explained by Intervenors-Appellees arguments in Section III.A.4, above, which Intervenors-Appellees incorporate herein by reference, the Board heard evidence about applying BACT countywide and using a one-mile radius from an overburdened community as a buffer zone. Because the Board's notice satisfied all relevant statutory and regulatory requirements, it is not arbitrary and capricious. Further, Appellants have not established the Board completely disregarded the evidence regarding the economic costs to air pollution emitters. Indeed, the Board's deliberations show that it was cognizant of those concerns and attempted to accommodate them while still fulfilling its primary obligation to protect public health and welfare. Statement of Chair Paul **[Tr. at 2120:16 – 2121:10]** (simplifying proposed rule would reduce costs and increase effectiveness); Statement of Member Armijo **[Tr. at 2177:20 – 2178:6]**; Statement of Chair Paul **[Tr. at 2183:15-22]**; Statement of Member Calman **[Tr. at 2185:3-11]**; Statement of Member Lewis **[Tr. at 2267:6-10]**.[10]

The only additional argument Appellants assert in support of their claim that the Board's decision in promulgating the Final Rule is arbitrary and capricious, is

[10] Industry witness, Mr. Scott Cohen, testified that a rule's level of uncertainty has a lot to do with how much compliance with the rule will cost. Testimony of Scott Cohen **[Tr. at 1607:14-15]**. The HEEI's requirement that sources apply BACT in or within one mile of an overburdened area, as mapped by the Environmental Health Department, and anytime a source emits any of fifteen enumerated air toxics is very specific. The certainty those provisions provide should reduce compliance costs. 20.11.72.8.A-D NMAC.

their statement - again without Record support - that the Board attorney unilaterally drafted the Final Rule and the Board failed to properly vote on the written Rule. **[BIC 27]**. Intervenors-Appellees address this argument more thoroughly in Section III.F, below, but note that Appellants' argument fails for two reasons.

First, based on Record evidence, it is clear that the Board's attorney did not draft the Board's Final Rule from whole cloth. Reading the Board attorney's statement in context, the transcript is clear she intended to, and did, transcribe the Board's verbal decision at the end of the hearing and reasons therefore. **[Tr. at 2047:4 – 2048:2]**.

Second, as Intervenors-Appellees will demonstrate in Section III.F, in creating its Final Rule, the Board substantially complied with the New Mexico Open Meetings Act. Because the Board's actions are firmly grounded in the Record and law, they are not arbitrary and capricious.

D. The Board Clearly has Authority to Adopt the HEEI.

Industry Appellants complain that the Board exceeded its statutory authority by mandating that the Environmental Health Department ("EHD") consider whether a community where an emitting source will be located is more vulnerable to the adverse health effects of air emissions prior to issuing an air pollution permit. **[BIC 29-30]**. However, it is difficult to square Appellants' argument with

its admission that the goal of the Air Act is to control and minimize air pollution and improve air quality and protect public welfare. **[BIC 30]**.

Both the federal Clean Air Act, which the New Mexico Air Quality Control Act implements, and the Air Act itself, serve the primary purpose of protecting public health and welfare. 42 U.S.C. § 7401(b)(1) (Congressional directive that air pollution is controlled for public health); NMSA 1978, § 74-2-5(A) (the local board shall prevent and abate air pollution); *Id*., § 74-2-5(B)(1) (the local board shall enact, amend and repeal rules and standards consistent with the Air Act to attain and maintain National Ambient Air Quality Standards and prevent and abate air pollution) (emphasis added); 20.11.82.32.A NMAC (listing the factors the Board must consider when promulgating a regulation; the majority of which relate to protecting health, welfare and the environment). Despite this clear mandate of the Clean Air Act and the Air Act to protect public health and welfare, Industry Appellants argue that the Board acted beyond its authority in two ways. First, Appellants assert that the definitions of "overburdened area" and "social determinants of health indicators" encompass socioeconomic characteristics unrelated to the abatement of air pollution. **[BIC 29-30]**. Second, Appellants imply that the Board only has authority to promulgate numerical standards to protect public health and welfare. **[BIC 30]** (emphasis added). Both arguments are meritless.

1. The Record Demonstrates that Air Emissions Interact with Social, Demographic and Economic Factors to Impact Public Health and Welfare.

As with many of their other arguments, Appellants advance their argument that the Board acted beyond its authority in promulgating the HEEI without the benefit of referring to the Record. Hence, Appellants baldly assert that in defining "overburdened area" and "social determinants of health" the Board heard no evidence and provided no explanation linking the social, demographic and economic factors in those definitions to air pollution. However, the Record is replete with evidence and testimony explaining why social, demographic and economic factors influence whether a community will be more susceptible to air pollution's health effects. Importantly, contrary to the Appellants' insinuation, nowhere does the Board either expressly or impliedly assert regulatory jurisdiction over social, demographic or economic factors. Instead, the Board directed the EHD to create a map considering these factors in order to determine where vulnerable communities are located in Bernalillo County in order to comprehensively regulate air pollution. Final Order **[RP 1778-1779; 1783, ¶ 15; 1789, ¶¶ A and B].**

Dr. Rachel Morello-Frosch provided extensive testimony on the association between race, existing health conditions, poverty, and other socioeconomic factors on a person's risk for disease when exposed to air contaminants. Testimony of Dr.

Rachel Morello-Frosch **[Tr. at 263:20 – 266:10; 267:14 – 268:9; 378:6 - 379:15]**. The scientific evidence correlating adverse socio-economic factors combined with environmental exposures, such as air pollution, to adverse health effects applies to vulnerable communities nationwide. *Id.*, **[Tr. 350:5 – 23]**. Dr. Morello-Frosch also testified about the ways in which regulatory interventions that reduce or eliminate air pollution significantly improve the health of communities exposed to that pollution. *Id.*, **[Tr. at 275:21 – 278:2; 278:12 – 279:16; 282:21 – 284:3]**. Dr. Kelsey Bilsback also testified that science shows that higher levels of pollution and polluting sources exist in low-income communities of color and stressors like limited access to healthcare can increase a community's vulnerability to air pollution. Testimony of Dr. Kelsey Bilsback **[Tr. at 495:3 – 496:7; 496:14 – 496:25]**; **Written Rebuttal Testimony of Dr. Kelsey Bilsback, Petitioners' Rebuttal Ex. 2, Q3**. Dr. Bilsback further testified that in setting national air quality standards for "criteria pollutants"[11] the EPA does not consider either the cumulative effects of multiple criteria pollutants or the effect of criteria pollutants on communities that are already vulnerable. Testimony of Dr. Kelsey Bilsback **[Tr. 487:21 – 488:1]**.

Community Intervenors' expert, Dr. Nicky Sheats, testified that the proposed rule was reasonable because it identifies vulnerable communities based

[11] *See*, 42 U.S.C. § 7408.

on socio-economic factors and provides additional protections for those communities. Testimony of Dr. Sheats **[Tr. at 248:10 – 249:1]**. Dr. Jill Johnston testified that years of scientific research establishes that socio-economic and demographic factors have a significant effect on a community's vulnerability to health effects from air pollution. **[Tr. at 915:16-23; 918:5-15; 918: 24 – 919:10]**. Additionally, in her written testimony, Dr. Johnston extensively explains the scientific basis for using social determinants of health to help regulate air pollution for the benefit of public health and welfare. **Direct Testimony of Jill E. Johnston, P.hD at 8:10 – 9:15, Community Intervenors' Ex. 9, attached to Community Intervenors' NOI**. Dr. Johnston also provided detailed written testimony about the scientific bases for taking environmental risk factors, social determinants of health and health indicators into account to protect public health and welfare, including most of those factors the Board adopted in its Final Rule. *Id*. at **10:12 – 15:2** (environmental risk factors); **15:4 – 21:5** (social determinants of health); **21:8 – 26:2** (health indicators). Dr. Johnston's professional conclusion was that anytime an agency reduces or removes harmful air emissions from an already overburdened community, such as with the proposed rule, it will improve the public health and welfare of that community. *Id*. at **28:11-15**.

UNM's expert witness, Dr. Matthew Campen, also emphasized that socioeconomic factors play a significant role in an individual's or a community's

risk of disease caused by air contaminants. **Written Testimony of Dr. Matthew Campen at 6, attached as Exhibit 15 to UNM's Notice of Intent to Present Technical Testimony**; *see also,* **UNM's Corrected Exhibit 2**, **§ 20.11.72.10.B** (suggested amendments to proposed rule outlining social, demographic and economic factors to be included in a community report).

Finally, Industry Appellants' own expert witness agreed that social determinants of health are useful in identifying overburdened or vulnerable communities and that using EJScreen to identify those communities is appropriate. Testimony of Dr. Tami McMullin **[Tr. at 1543:17-1544:7; 1551:15 – 1552:9]**.

In sum, the Record evidence clearly demonstrates that the Board can and should evaluate factors enumerated in the definitions of "overburdened area" and "social determinants of health indicators" when considering whether air contaminants will pose a reasonable risk to human health and public welfare, a task squarely within the Board's authority. NMSA 1978, § 74-2-5(B)(1).

2. The Board is not Limited to Promulgating Numerical Standards to Minimize Air Pollution and Improve Air Quality.

Appellants also argue that, unless the Board based the HEEI on which quantities and durations of air contaminants may reasonably pose a risk to public health, it acted beyond its authority. **[BIC 30]**. Appellants' insistence that the Board only has authority to promulgate a regulation if it calculates the quantity and duration at which an air contaminant poses a reasonable risk of harm to public

health, i.e., a numerical standard, ignores the Air Act's plain language and the Legislature's intent.

The Air Act directs the Board to:

> adopt, promulgate, publish, amend and repeal rules and standards consistent with the Air Quality Control Act to attain and maintain national ambient air quality standards and prevent or abate air pollution …

NMSA 1978, § 74-2-5(B)(1) (emphasis added). The use of the conjunctive "and" clearly indicates the New Mexico Legislature intended for the Board to not only enact numerical standards, but also other rules to prevent and abate air pollution. *Maes v. Audubon Indem. Ins. Grp*., 2007-NMSC-046, ¶ 11, 142 N.M. 235, 238 (courts should look to legislation's plain language to determine the legislature's intent). Likewise, by using the conjunctive "and," the Legislature obviously did not intend for the Board to be constrained by numerical standards, such as the National Ambient Air Quality Standards, but to also use other rules to prevent or abate air pollution. NMSA 1978, § 74-2-5(D) and (G) (allowing the Board to adopt standards and regulations more stringent than federal standards and regulations). This is exactly what the Board did.

Appellants' reliance on *SouthWest Organizing Project v. Abq.-Bern. County Air Quality Control Board* is unavailing. **[BIC 30]**. In that case, this Court's holding did not limit the Board to promulgating only numerical standards. Indeed,

the Court recognized that the Board is obliged to create regulations and standards to carry out its mandate to prevent and abate air pollution. *SouthWest Organizing Project v. Abq.-Bern. County Air Quality Control Board*, 2021-NMCA-005, ¶ 16, 482 P.3d 1273 (emphasis added). If, as the Appellants suggest, the Board were constrained to enacting only numerical standards, achieving the legislative intent of preventing and abating air pollution would be impossible - an absurd result the Legislature cannot have intended. *Maes*, 2007-NMSC-046 at ¶ 11 (courts will adopt a construction that achieves the statute's goals and does not lead to an absurd or unreasonable result).

E. The HEEI is Clear and Unambiguous.

1. Standard for Unconstitutional Vagueness.

Whether a regulation violates due process because it is impermissibly vague is a constitutional question. *Old Abe Co. v. New Mexico Min. Com'n*, 1995-NMCA-134, ¶ 31, 121 N.M. 83, 908 P.2d 776. A court will presume that an agency's rules and regulations are valid, and will uphold them if reasonably consistent with the statutes they implement. *Id*. at ¶ 10. When determining whether a regulation is unconstitutionally vague, a court will evaluate whether it is so vague that persons of common intelligence must guess at its meaning and would differ in its application. *Id*. at ¶ 25. In evaluating a rule or regulation, courts must acknowledge that an administrative agency's regulations are necessarily general.

Id. at ¶ 27 (citation omitted). Regulations, by their nature, are required to hold the difficult line between overbreadth or vagueness and inflexibility and unworkable restriction. *Id*. An agency is not required to draft a regulation with absolute precision, only that it can be construed with known, accepted rules of construction. *Id*.

Moreover, the Constitution is more tolerant of vagueness when the regulation has an economic aspect because businesses have the opportunity to consult the regulation ahead of time and plan. *Id*. at ¶ 31 (citation omitted). Additionally, there is more tolerance for vagueness in civil regulations compared to criminal rules because the consequences are less severe. *Id*. The most important factor a court must consider is whether the regulation threatens to inhibit the exercise of a constitutionally protected right. *Id*. Importantly, in *Old Abe*, this Court concluded that, to the extent the regulations at issue were unclear, the consequences to an applicant were mild in the absence of civil or criminal penalties, i.e., the worst that could happen is the regulatory agency would reject the application – a determination that the applicant could subsequently appeal. *Id*. ¶ 32.

2. Appellants Lack Standing to Raise a Vagueness Claim.

As a preliminary matter, under New Mexico law, Appellants lack standing to raise the claim that the Final Rule is unconstitutionally vague. The general rule is that the constitutionality of legislation can only be attacked if the challenger

demonstrates that the law, as applied to him, affects his constitutional rights. *State v. Casteneda*, 1982-NMCA-046, ¶ 46, 97 N.M. 670 (citations omitted). In this case, the Albuquerque Environmental Health Department, not Appellants, are responsible for interpreting the terms "overburdened area" and "social determinants of health indicators." 20.11.72.8.A NMAC. Thus, the Environmental Health Department, not Appellants, is the proper party to raise any claim of unconstitutional vagueness. Moreover, Appellants have not alleged, much less demonstrated, that the HEEI as applied to them, affects their constitutional rights.

3. Appellants have Failed to Show the HEEI Meets any of the Criteria for Unconstitutional Vagueness.

Even if this Court entertains Appellants' vagueness arguments, those arguments fail to analyze most of the criteria this Court enumerated in *Old Abe*, the very case Appellants cite to support their argument. **[BIC 31]**. Additionally, Appellants misstate the HEEI's text. **[BIC 31-32]**. Appellants' unsupported and bald assertion that the HEEI is incomprehensible to persons of common intelligence ignores the bulk of this Court's analysis in *Old Abe*.

a. The HEEI's provisions are understandable to a person of common intelligence.

Appellants assert, contrary to the HEEI's plain language, that the definition of "overburdened area" lacks specific criteria or clear thresholds for determining

what constitutes "overburdened." However, 20.11.72.7.D NMAC very clearly indicates that an overburdened area is among the highest 20% of census block groups meeting a combination of socioeconomic, health and environmental factors (defined in 20.11.72.7.E, C and B NMAC, respectively) as enumerated in the U.S. Environmental Protection Agency's EJScreen and the New Mexico Department of Health's Indicator Based Information System ("IBIS"). In turn, the Record demonstrates that the data in both EJScreen and IBIS are thoroughly vetted by the federal and state agencies responsible for their operation. **Written Rebuttal Testimony of Dr. Kelsey Bilsback at 1, Q1, Petitioners' Rebuttal Exhibit 2;** Testimony of Dr. Morello-Frosch, **[Tr. at 360:4-16]**; Testimony of Dr. Bilsback **[Tr. at 495:3 – 496:7]**; Testimony of Dr. Clark **[Tr. at 510:2-7]**; Exchange between Member Richards and Dr. McMullin **[Tr. 1758:25 - 1761:23]**. Ironically, Industry Appellants' expert witness, Dr. McMullin made this very point in her testimony before the Board. **[Tr. at 1551:15 – 1552:9]**.

Similarly, Appellants' complaint that the definition of "social determinants of health indicators" is impermissibly vague is based more on pique and wishful thinking than any cognizable law. **[BIC 32]**. "Social determinants of health" is widely understood by public health professionals and regulators and whose meaning is readily available to a person of common intelligence. *See e.g., World Health Organization, Health Topics, Social Determinants of Health* available at:

https://www.who.int/health-topics/social-determinants-of-health#tab=tab_1 (last viewed March 12, 2025); *National Centers for Disease Control and Prevention, Social Determinants of Health*, available at: https://www.cdc.gov/about/priorities/why-is-addressing-sdoh-important.html (last viewed March 27, 2025). More important, construing the definition of "social determinants of health indicators" in conjunction with the definition of "overburdened area" makes it clear that the social determinants of health definition is tied to factors used in EPA's EJScreen and New Mexico IBIS. 20.11.72.7.D NMAC. Under accepted rules of regulatory construction, these two provisions are easily harmonized. *Starko, Inc. v. New Mexico Human Svc. Dept.*, 2014-NMSC-033, ¶ 35, 333 P.3d 947 (statutes are interpreted so that all provisions are construed in relation to each other; a court looks to the provisions of the whole law, and to its object and policy)(quotations omitted).

Finally, Appellants assert that because 20.11.72.7.A NMAC refers to the definition of BACT in 20.11.61.7.M NMAC, a state regulation limiting BACT requirements to New Source Review sources that does not encompass imposing BACT for HAPs, the Board's decision imposing BACT for HAPs countywide is impermissible. **[BIC 33]**. This argument fails because, using the rules of statutory construction, the HEEI is easily understood.

A court's primary purpose in interpreting a statute (or regulation) is to ascertain and give effect to the decision-makers' intent. *Maes*, 2007-NMSC-046 at ¶ 11. In determining the decision-makers' intent, the court looks to the statute's plain language, context, history and purpose the decision-maker sought to accomplish. *Id*.

The Final Rule's plain language clearly indicates that the Board did not incorporate the entirety of Part 61 NMAC, but only the definition of BACT. 20.11.72.7.A NMAC. Hence, under 20.11.72.7.A, the EHD would apply 20.11.61.7.M's directive to take into account control technology cost, energy impacts, and other considerations enumerated under that provision to HAPs sources in Bernalillo County. This interpretation also furthers the Board's goal of protecting public health in all of Bernalillo County from the adverse effects of air toxics. Appellants' argument that the Final Rule is contradictory is without merit.

b. The HEEI affirmatively meets the criteria enumerated in *Old Abe.*

As explained in Section E.1, above, this Court in *Old Abe* outlined several criteria which, when met, indicate a regulation is constitutional when challenged for vagueness. *Id*. at ¶¶ 25, 27, 31 and 32. In this case, the HEEI meets the majority of those criteria.

First, permit applicants, like Appellants, have the opportunity to inquire into the meaning of the HEEI on its own to clarify the HEEI. *Old Abe*, 1995-NMCA-134 at ¶ 3. Appellants can contact the Environmental Health Department ahead of time and get clarification and guidance on any permit application. 20.11.41.13.A NMAC (requirement for pre-application meeting with the Department). Hence, Appellants and all others can plan their behavior carefully. *Old Abe*, 1995-NMCA-134 at ¶ 31. Moreover, the Final Rule requires EHD to create a map of overburdened areas – using the regulatory definitions of overburdened communities and social determinants of health – which eliminates any guesswork on a permit applicant's part. 20.11.72.8.A NMAC. In other words, if an applicant chooses to locate its polluting source in an overburdened community or within one mile of that community, as indicated on the EHD's map, it will have to install BACT.

Second, the Final Rule is a civil, rather than criminal, regulation, such that the consequences of "guessing incorrectly" are mild. The worst that can happen to any permit applicant is that the Department can reject its application, after which the applicant can either reapply or appeal the Department's denial. *Old Abe*, 1995-NMCA-134 at ¶ 32; 20.11.41.16 NMAC (permit issuance and denial); 20.11.81.2.A.1 NMAC (person, including applicant, adversely affected by Department permitting decision may appeal to the Board).

Finally, Appellants fail to identify any constitutionally protected right impacted by the Final Rule. *Old Abe,* 1995-NMCA-134 at ¶ 31. Moreover, there is no constitutional right to emit pollutants. Likewise, there is no property right in a permit issued pursuant to the Air Act. 40 C.F.R. § 70.6(a)(6)(iv); *see also*, *In re Propex, Inc.*, 415 B.R. 321, 333 (Bankr. E.D. Tenn., 2009). Because the Appellants failed to establish the Final Rule meets any of the factors for unconstitutional vagueness, their argument should be rejected.

F. The Board did not violate the New Mexico Open Meetings Act.

1. Appellants Fail to Support their Arguments with Citations to the Record.

"Issues must be adequately argued and supported by authority in the brief-in-chief or they will be deemed abandoned." *Hosteen*, 1996-NMCA-084 at ¶ 20. Appellants claim the Board drafted and finalized the Final Rule in violation of the New Mexico Open Meetings Act ("OMA") because no quorum existed for the Board and the Board failed to adopt the final language of the Rule at a meeting held in accordance with the OMA. **[BIC 34-35]**. However, Appellants again fail to cite to any Record evidence to support their arguments. Because Appellants have raised the alleged OMA issues with no support, they have abandoned those arguments. *Id.*

2. The Board Complied with the New Mexico Open Meetings Act.

Even if the Court decides to consider Appellants' OMA arguments, based on the Record, the Board substantially complied with the OMA. Appellants assert the Final Rule violates the OMA because it was: 1) proposed and drafted by the Board attorney; 2) not considered and voted on by a quorum of the Board; and 3) not considered or voted on by the Board during a duly noticed public meeting. **[BIC 34-35]**. Appellants do not explicitly say so, but the bulk of their argument appears predicated on the belief the OMA requires the Board to vote on a written final rule. Because the OMA contains no such requirement, Appellants' argument fails.

a. Legal standard.

The OMA requires substantial, but not strict, compliance. *Gutierrez v. City of Albuquerque,* 1981-NMSC-061, ¶¶ 13, 15, 96 N.M. 398, 631 P.2d 304. Under the substantial compliance standard, "when the [OMA] has been sufficiently followed so as to carry out the intent for which it was adopted and serve the purpose of the statute[,]" no violation has occurred. *Id.* at ¶ 14. The purpose of the OMA is "to provide that governing bodies ... be required to make decisions in the open where the interested public c[an] observe the action." *Id.* at ¶ 8 (quoting *Raton Pub. Serv. Co. v. Hobbes,* 1966-NMSC-150, ¶ 18, 76 N.M. 535, 417 P.2d 32). Although compliance with the OMA's provisions is generally necessary to meet this goal, "[i]t can be said with equal assurance that in enacting the [OMA,]

the Legislature did not intend to impair or impede the effective workings of the various political subdivisions of the state." *Gutierrez,* 1981-NMSC-061 at ¶ 12. While the OMA required the Board to adopt the Final Rule in a public meeting, it does not require that the Board ratify the written decision in another public meeting. *Kleinberg v. Bd. of Educ. of Albuquerque Pub. Sch.*, 1988-NMCA-014, ¶22, 107 N.M. 38, 751 P.2d 722 ("We decline to view the statute so as to require an open meeting to perform a perfunctory or purely ministerial act").

b. The Board's attorney did not make any decisions about the Final Rule's substance.

First, though the Board's attorney transcribed the Board's final decision and stated reasons therefore, she did not make any substantive decisions about the Final Rule. *See*, exchange between Member Calman and Board Attorney **[Tr. at 2047:4 – 2048:2]**; s*ee also*, N.M. Off. of Att'y Gen., *New Mexico Open Meetings Act Compliance Guide*, 8th Ed. (2015) at 9 ("Because they act solely in an advisory capacity, and have no authority to make decisions on behalf of the board, the parents do not constitute a policymaking body of the school district and their meetings are not subject to the provisions of the Act"). The act of reducing the Final Rule to writing was not an improper delegation of the Board's authority to the Board's attorney, but, rather, a directive by the Board taken in furtherance of the Air Board's action of adopting the Final Rule. Because the attorney's writing

of the Final Rule was a purely ministerial act, the Board did not violate the OMA. *Kleinberg,* 1988-NMCA-014 at ¶22 ("We decline to view the statute so as to require an open meeting to perform a perfunctory or purely ministerial act"). Moreover, comparing the Final Rule language to the language the Board offered in its deliberations, it is obvious that the Board's attorney performed a ministerial act because the language of the written Final Rule is nearly verbatim. Compare, e.g. **[Tr. 2337:11-14]** and 20.11.72.7.A NMAC (definition of BACT); **[Tr. 2337:15 – 2338:4]** and 20.11.72.8.A and B (directing the EHD to create an overburdened areas map); **[Tr. 2338:5-13]** and 20.11.72.8.C NMAC (requiring every source in an overburdened community or within one mile of an overburdened community to employ BACT). The Board attorney clearly performed a ministerial act in transcribing the Board's verbal decision and therefore did not violate the OMA.

c. The Board had a quorum when it voted on the Final Rule's provisions.

Appellants' cryptically assert that the Board lacked a quorum when it voted on the Final Rule. **[BIC 34-35]**. However, on December 11, 2023, the date the Board voted to adopt the Final Rule, the Record clearly indicates a quorum present. **[Tr. at 2040:21 – 2041:24]** (roll call establishing a quorum of five members in person and two members online).

d. The Board voted on the Final Rule at a properly noticed meeting.

Contrary to Appellants' assertions, the Board voted on the language of the Final Rule before the close of the duly noticed rulemaking hearing, consistent with all requirements of the OMA and the Board's rulemaking procedures.

The OMA's plain language does not require the Board to vote on the written language of the Final Rule, but instead requires the Board provide reasonable notice of a public meeting where the Board takes final action, in this case, voting to adopt a proposed regulation. NMSA 1978, § 10-15-1(D); *Kleinberg*, 1988-NMCA-014 at ¶¶ 22, 30-31 (considering a final action to be a local board's vote taken at a public hearing). The Court should not read such a requirement into the OMA. *High Ridge Hinkle Joint Venture v. City of Albuquerque*, 1998-NMSC-050, ¶ 5, 126 N.M. 413. Additionally, the OMA contains no requirement that the final written language be publicly available for comment, because the Legislature did not intend for the OMA "to impair or impede" public bodies' rulemaking processes. *Gutierrez*, 1981-NMSC-061 at ¶ 12.

In this case, the Board's October 30, 2023 public notice of the rulemaking hearing provided the Board would consider and potentially adopt a rule during the rulemaking hearing. **[RP 1085 – 1106]**. On December 11, 2023, the final day of the rulemaking hearing, a quorum of the Board considered the evidence the parties

presented and voted on the language that appeared in the Final Rule. 20.11.82.32.B NMAC ("if a quorum of the board attended the hearing, and if the hearing notice indicated that a decision might be made at the conclusion of the hearing or meeting, the board may immediately deliberate and make a decision on the proposed regulatory change at the end of the hearing or at a board meeting after the hearing"); **[Tr. 2337:6 – 2341:18]** (motion by Member Eberlein to adopt language agreed upon during deliberations, second by Member Calman, roll call vote and motion passed 5-2).[12] The Board complied with both the OMA and its own rulemaking regulations.

3. If this Court Finds the Board Violated the New Mexico Open Meetings Act, this Court should Remand the Final Rule to the Board for a Properly Noticed Vote.

The legislature, in drafting the OMA, "did not intend to unduly burden the appropriate exercise of governmental decision-making and ability to act." *Kleinberg,* 1988–NMCA–014, ¶ 31. Thus, "[p]rocedural defects in compliance with the OMA may be cured by taking prompt corrective action." *N.M. State Inv.*

[12] Appellants assert that the Board intended to vote on the Final Rule at a later meeting. **[BIC 8-9, 24]**. However, the portion of the Transcript upon which the Appellants appear to rely (*see*, **[BIC 8]**), when read in context, does not support their argument. The exchange between Member Calman and the Board's Attorney clearly indicates that Member Calman wanted to establish a process by which the Board could agree on regulatory language during the deliberations and then vote on all the agreed upon language in a single vote at the end of deliberations. **[Tr. 2047:4 – 2048:9]**. This is precisely what the Board did.

Council v. Weinstein, 2016-NMCA-069, ¶ 86, 382 P.3d 923 (quoting *Kleinberg*, 1988-NMCA-014, ¶ 30); *see also, Bd. of Educ. of Santa Fe Pub. Sch. v. Sullivan*, 1987-NMSC-062, 106 N.M. 125, 740 P.2d 119. Prompt corrective action includes the Board holding a public meeting to consider and take a public vote on the Final Rule language, to create a public record of the vote. *Kleinberg,* 1988-NMCA-014, ¶¶ 30-31 (finding a local board cured an OMA violation when it voted and announced its decision in a public hearing thirty months after the OMA violation occurred).

If the Court finds the Board violated the OMA, which it should not, the appropriate remedy is not to vacate the Final Rule, but to remand the Final Rule back to the Board for a properly noticed public vote on the Final Rule language. Such prompt corrective action by the Board can cure any alleged procedural defect without running afoul of the legislature's intent in adopting the OMA, as "[t]o rule otherwise would improperly elevate form over substance." *Id.* at ¶ 31. The Board, "in taking a public vote and openly announcing its decision in a forum where the interested public could observe the action," would properly cure any procedural defect with the OMA, while carrying out the intent and purpose of the OMA. *Id.* Thus, if this Court finds the Board in violation of the OMA, this Court can, and should, remand the Final Rule to the Board for a properly noticed vote by the Board at a public meeting.

IV. CONCLUSION

For all the foregoing reasons, Intervenors-Appellees respectfully request that this Court affirm the Board's Final Order in its entirety.

Respectfully submitted,

April 2, 2025

/s/ Eric Jantz

Eric D. Jantz
Maslyn K. Locke
Kacey J. Hovden
New Mexico Environmental Law Center
P.O. Box 12931
Albuquerque, NM 87195
Tel: (505) 989-9022
ejantz@nmelc.org
mlocke@nmelc.org
khovden@nmelc.org

Attorneys for Intervenors-Appellees

CERTIFICATE OF SERVICE

I hereby certify that on this 2nd day of April 2025, a copy of the foregoing Answer Brief of Intervenors-Appellees was submitted for filing and electronic service through the Court's Odyssey File and Serve system as follows:

MODRALL, SPERLING, ROEHL,HARRIS & SISK, P.A.
Stuart R. Butzier
Stan N. Harris
Benjamin C. Rossi
P.O.Box 2168
Albuquerque, NM 87103
(505) 848-1800
stuart.butzier@modrall.com
stan.harris@modrall.com
benjamin.rossi@modrall.com
Konstantin N. Parkhomenko
P.O. Box 5800
Mail Stop 0161
Albuquerque, NM 87185-0161
(469) 855-7287
knparkh@sandia.gov

Attorneys for National Technology & Engineering Solutions of Sandia, LLC

DOMENICI LAW FIRM, P.C.
Pete V. Domenici, Jr.
Lorraine Hollingsworth
P.O. Box 4295
Albuquerque, NM 87196
(505) 883-6250 ext. 109
pdomenici@domenicilaw.com
lhollingsworth@domenicilaw.com

Attorneys for Albuquerque Asphalt, Inc.; Black Rock Services, LLC; Curia New Mexico, LLC; Vital Consulting Group, LLC; Mountain States Constructors, LLC;and New Mexico Chamber of Commerce.

Lauren Keefe, City Attorney
City of Albuquerque
P.O. Box 2248
Albuquerque, NM 87103
(505) 768-4500
lkeefe@cabq.gov

Attorney for City of Albuquerque, Environmental Health Department

Jane Yee
jane.cambio@gmail.com
airboard@cabq.gov

Attorney for the Air Quality Control Board

/s/ Eric Jantz